

hear one of several trustees spoken of as the *acting* trustee, but the Court knows no such distinction; all who accept the office are in the eyes of the law acting trustees. If any one refuse or be incapable to join, it is not competent for the others to proceed without him, but the administration of the trust must in that case devolve upon the Court (*e*). However, the act of one trustee done with the sanction and approval of a co-trustee may be regarded as the act of both (*f*). But such sanction or approval must be strictly proved (*g*).

[*259] * [2. **Notice of renewal.** — Notice of an intention to exercise a right of renewal of a lease of property vested in several trustees is good if served upon one only of the trustees (*a*).]

3. **Receipts.** — A receipt for money must, in the absence of a receipt clause specially worded, receive the joint authentication of the whole body of trustees, and not of the majority merely, or it will not be valid (*b*). And therefore where the trustees are numerous, it is common in orders of

(*e*) *Doyly v. Sherrart*, 2 Eq. Ca. Ab. 742, marginal note to (D). *Re Congregational Church, Smethwick*, W. N. 1866, p. 196; [*Luke v. South Kensington Hotel Company*, 7 Ch. D. 789; 11 Ch. D. 121.]

(*f*) *Messeena v. Carr*, 9 L. R. Eq. 260.

(*g*) See *Lee v. Sankey*, 15 L. R. Eq. 204.

[(*a*) *Nicholson v. Smith*, 22 Ch. D. 640.]

(*b*) *Walker v. Symonds*, 3 Sw. 63; *Hall v. Franck*, 11 Beav. 519; *Lee v. Sankey*, 15 L. R. Eq. 204.

98; but the majority may act when it is expressly authorized by will; *Crane v. Decker*, 22 Hun, 452.

Public trusts. — The majority of the trustees of a public trust control, and may act for the whole, but all must meet or have an opportunity to meet and deliberate; *Commissioners v. Lecky*, 6 Serg. & R. 170; 9 Am. Dec. 418; *State Road in Lehigh & Bucks Cos.* 60 Pa. St. 330; and all must have been appointed and sworn before any can act; *M'Cready v. Guardians of the Poor*, 9 Serg. & R. 94; 11 Am. Dec. 667. The acts of the majority must be within the scope of their powers; *Sloo v. Law*, 3 Blatch. 459; *Ward v. Hipwell*, 3 Gif. 547. If the instrument creating the trust authorizes the majority, or any specific number, to act, they may do so, and their acts will have the same effect and validity as if the action was unanimous; *Taylor v. Dickinson*, 15 Ia. 483. Trustee will not be allowed to avoid the performance of purely ministerial acts reasonably required, but in matters of discretion the courts will give them much greater latitude; *Burrill v. Sheil*, 2 Barb. 457; *In re Mechanics' Bank*, 2 Barb. 440.